METRIC

A-A-20177G
May 14, 2025
SUPERSEDING
A-A-20177F
July 12, 2019

COMMERCIAL ITEM DESCRIPTION

CANDY AND CHOCOLATE CONFECTIONS

The U.S. Department of Agriculture (USDA) has authorized the use of this Commercial Item Description (CID).

1. SCOPE. This CID covers candy and chocolate confections (candy), packed in commercially acceptable containers, suitable for use by Federal, State, local governments, other interested parties, and as a component of operational rations. **Please note: This document does not guarantee purchase of this item by USDA.**[1]

2. PURCHASER NOTES.

2.1 Purchasers *must specify* the following:

- Type(s), style(s), flavor(s), and flavor style(s) of candy required. (Sec. 3).
- When compliance with analytical requirements must be verified (Sec. 7.3).
- Manufacturer's/distributor's certification (Sec. 10.3) or USDA certification (Sec. 10.4).

2.2 Purchasers *may specify* the following:

- Food Defense (Sec. 10.1) and Manufacturer's Quality Assurance (Sec. 10.2). Purchaser may specify on of the following combinations: Sec. 10.1.1 with 10.2.1 or 10.1.2 with 10.2.2.
- Packaging requirements other than commercial (Sec. 11).

3. CLASSIFICATION. The candy must conform to the following list which must be specified in the solicitation, contract, or purchase order.

[1] USDA purchase specifications are available at: https://www.ams.usda.gov/selling-food/product-specs.

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Types, styles, flavors, and flavor styles.[2]

Type I - Chocolate flavored toffee
Style A - Roll
Style B - Cube

Type II - Toffee with walnuts

Type III - Hard candy
Style A - Square or rectangular fruit tablets, 28.35 g (1.0 oz bar)
Style B - Square fruit tablets, 45.40 g (1.6 oz bar)
Style C - Round or oval (*as specified by the purchaser*)
Flavor 1 - Caramel
Flavor 2 - Butter rum
Flavor 3 - Coffee
Flavor 4 - Strawberry crème
Flavor 5 - Other (*as specified by the purchaser*)
Style D - Rings
Flavor 1 - Assorted fruit
Flavor 2 - Cherry
Flavor 3 - Tropical fruit
Flavor 4 - Butter rum
Flavor 5 - Berry
Flavor 6 - Other (*as specified by the purchaser*)
Style E - Rings, sugar free
Flavor 1 - Assorted fruit
Flavor 2 - Cherry
Flavor 3 - Other (*as specified by the purchaser*)
Style F - Other (*as specified by the purchaser*)

Type IV - Pan coated candy
Style A - Disks
Flavor 1 - Milk chocolate, plain
Flavor 2 - Fruit flavored
Flavor style a - Original
Flavor style b - Berry
Flavor style c - Tropical
Flavor style d - Sour
Flavor style e - Other (*as specified by the purchaser*)
Flavor 3 - Milk chocolate with peanut butter
Flavor 4 - Peanut butter, plain

[2] Not all options are available from every manufacturer. Check with the manufacturer/distributor for availability.

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Flavor 5 - Cinnamon
Flavor 6 - Dark chocolate, plain
Flavor 7 - Other (*as specified by the purchaser*)
Style B - Oval/Round
Flavor 1 - Milk chocolate with peanuts
Flavor 2 - Dark chocolate covered coffee beans
Flavor 3 - Milk chocolate with almonds
Flavor 4 - Dark chocolate with peanuts
Flavor 5 -Other (*as specified by the purchaser*)
Style C - Flat bottom tear drop
Flavor 1 - Milk chocolate, plain
Flavor 2 - Other (*as specified by the purchaser*)

Type V - Licorice style candy
Style A - Twists
Flavor 1 - Strawberry
Flavor 2 - Cherry
Flavor 3 - Watermelon
Flavor 4 - Black licorice
Flavor 5 - Grape
Flavor 6 - Apple
Flavor 7 - Chocolate
Flavor 8 - Cinnamon
Flavor 9 - Other (*as specified by the purchaser*)
Style B - Bite size
Flavor 1 - Cherry
Flavor 2 - Black licorice
Flavor 3 - Other (*as specified by the purchaser*)
Style C - Rope (pull and peel)
Flavor 1 - Strawberry
Flavor 2 - Cherry
Flavor 3 - Watermelon
Flavor 4 - Other (*as specified by the purchaser*)
Style D - Other (*as specified by the purchaser*)

Type VI - Mint candy
Style A - Round tablets
Flavor 1 - Wintergreen
Flavor 2 - Peppermint
Flavor 3 - Spearmint
Flavor 4 - Crème de Menthe
Flavor 5 - Cinnamon

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Flavor 6 - Other (*as specified by the purchaser*)
Style B - Rings
Flavor 1 - Wintergreen
Flavor 2 - Peppermint
Flavor 3 - Spearmint
Flavor 4 - Orange mint
Flavor 5 - Butter mint
Flavor 6 - Other (*as specified by the purchaser*)
Style C - Rings, sugar free
Flavor 1 - Wintergreen
Flavor 2 - Peppermint
Flavor 3 - Other (*as specified by the purchaser*)
Style D - Squared mini tablets, sugar free
Flavor 1 - Peppermint
Flavor 2 - Cinnamon
Flavor 3 - Wintergreen
Flavor 4 - Other (*as specified by the purchaser*)

Type VII - Caffeinated mint
Style A - Round tablets
Flavor 1 - Peppermint
Flavor 2 - Other (*as specified by the purchaser*)
Style B - Round tablets, sugar free
Flavor 1 - Peppermint
Flavor 2 - Other (*as specified by the purchaser*)
Style C - Other *(as specified by the purchaser)*

Type VIII - Caffeinated jelly beans
Style A - Bean-shaped
Flavor 1 - Berry
Flavor 2 - Cherry
Flavor 3 - Fruit
Flavor 4 - Lemon
Flavor 5 - Orange
Flavor 6 - Pomegranate
Flavor 7 - Watermelon
Flavor 8 - Pomegranate, cherry, and watermelon
Flavor 9 - Other (*as specified by the purchaser*)
Style B - Other

Type IX - Caffeinated chewables/gels
Style A - Dome-shaped

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Flavor 1 - Cherry cola
Flavor 2 - Lime
Flavor 3 - Kiwi
Flavor 4 - Other *(as specified by the purchaser)*
Style B - Other

Type X - Other

4. MANUFACTURER'S/DISTRIBUTOR'S NOTES. Manufacturer's/distributor's products must meet the requirements of the:

- Processing guidelines (Sec. 5).
- Salient characteristics (Sec. 6).
- Analytical requirements: *as specified by the purchaser* (Sec. 7).
- Manufacturer's/distributor's product assurance (Sec. 8).
- Regulatory requirements (Sec. 9).
- Quality assurance provisions: *as specified by the purchaser* (Sec. 10).
- Packaging requirements other than commercial: *as specified by the purchaser* (Sec. 11).

5. PROCESSING GUIDELINES.

5.1 Processing. The candy must be processed in accordance with *Current Good Manufacturing Practice in Manufacturing, Packing, or Holding Human Food* (21 Code of Federal Regulations (CFR) Part 110), and *Current Good Manufacturing Practice, Hazard Analysis, and Risk-Based Preventive Controls for Human Food* (21 CFR Part 117) in effect on the date of the solicitation, contract, or purchase order, and as applicable to the production facility.

5.2 Food defense. The candy must be processed and transported in accordance with *Mitigation Strategies to Protect Food Against Intentional Adulteration* (21 CFR Part 121). This document identifies the kinds of preventive measures food manufacturers, processors, or handlers may take to minimize the risk that food under their control will be subject to tampering or other malicious, criminal, or terrorist actions. The implementation of enhanced food defense preventive measures provides for the security of a plant's production processes and includes the storage and transportation of pre-production raw materials, other ingredients, and post-production finished product.

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6. SALIENT CHARACTERISTICS.

6.1 Sugar free. Sugar free is defined in 21 CFR §101.60(c) as a claim that may be used on a food that contains less than 0.5 g of sugars, as defined in 21 CFR §101.9(c)(6)(ii), per reference amount customarily consumed and per labeled serving.

6.2 Labeling. All ingredients must be declared by their common or usual name in descending order of predominance by weight (21 CFR §101.4) unless exempted by 21 CFR §101.100. The candies must comply with the regulations governing the labeling of foods that make direct or indirect representations with respect to a primary recognizable flavor in 21 CFR §101.22(i). Candies containing milk chocolate must comply with 21 CFR §163.130. Milk chocolate candy ingredients with standards of identity must meet the applicable regulation, i.e. peanut butter must conform to 21 CFR §164.150. Candies identifying as dark chocolate containing chocolate liquor must conform to 21 CFR §163.111. Non-standardized cacao products must comply with the Compliance Policy Guide (CPG).[3]

6.3 Ingredients.

6.3.1 Dairy ingredients. Where applicable, ingredients must comply with relevant food standards of identity established in 21 CFR Parts 131to169 and must originate from a manufacturing plant that has been approved by the USDA, Agricultural Marketing Service (AMS), Dairy Program (DP), Dairy Grading Branch. The manufacturing plants must be eligible for listing in the most recent version of the publication *Dairy Plants Surveyed and Approved for USDA Grading Service.*[4]

6.3.2 Additional processing ingredients. When used, all additional ingredients must meet the standards specified in the Food Chemicals Codex (FCC) or, in the absence of FCC specification at a minimum, meet the specifications for quality set by the U.S. Pharmacopeia (USP)-National Formulary. The additional ingredients must be approved food additives (21 CFR Part 170) or meet Generally Recognized as Safe (GRAS) requirements (21 CFR Parts 182 and 184) for those uses by Food and Drug Administration (FDA)

6.4 Finished product.

6.4.1 Type I - Chocolate flavored toffee. The chocolate flavored toffee may contain ingredients such as, corn syrup, sugar, palm oil, condensed skim milk, condensed milk, cocoa, whey, soy lecithin, and artificial and natural flavors. The candy must have a semi-sweet chocolate and caramel odor and flavor. Style A - Roll must be chewy with a grainy interior and

[3] Compliance Policy Guide (CPG) Sec. 515.800, *Labeling of Products Purporting to be "Chocolate" or Chocolate Flavored* is available at: https://www.fda.gov/regulatory-information/search-fda-guidance-documents/cpg-sec-515800-labeling-products-purporting-be-chocolate-or-chocolate-flavored.

[4] *Dairy Plants Surveyed and Approved for USDA Grading Service* is available at: https://apps.ams.usda.gov/dairy/ApprovedPlantList/.

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Style B - Cube must have a soft, chewy texture with a slightly grainy interior. Both styles must have a dark brown color, and the outside portion must be smooth. Style A - Roll must be individually wrapped as a 14 g (0.50 oz) roll. Style B - Cube must be individually wrapped as a 2.54 cm x 2.54 cm x 1.27cm ± 0.32 cm (1 in x 1 in x ½ in, ± 1/8 in) cube and the net weight of five overwrapped pieces must be not less than 40 g (1.4 oz). The product must not adhere to the wrappers.

6.4.2 Type II - Toffee with walnuts. The toffee with walnuts may contain ingredients such as, corn syrup, sugar, condensed whole milk, walnuts, coconut oil, cream, salt, caramel color, natural flavors and lecithin. The product must be a medium to dark brown colored cube that is 2.54 cm x 2.54 cm x 1.27 cm ± 0.32 cm (1 in x 1 in x ½ in ± 1/8 in), with light tan walnut bits uniformly distributed throughout, and the net weight of five overwrapped pieces must be not less than 40 g (1.4 oz). The candy must have a soft, chewy texture with a slightly grainy interior with semi-firm walnut bits and a smooth exterior. The toffee with walnuts must have a slight maple, caramel odor and a sweet, slight caramel, maple, walnut and vanilla flavor. The candy must be individually wrapped, and the product must not adhere to the wrappers.

6.4.3 Type III - Hard candy.

6.4.3.1 Style A and B, Square or rectangular fruit tablets and square fruit tablets. The hard candy square or rectangular fruit tablets must contain sugar, corn syrup, citric or malic acid, and natural and/or artificial flavors and may contain sodium lactate, turmeric coloring and cream of tartar. U.S. Food, Drug, and Cosmetic (FD&C) certified colors may be used. The hard candy square or rectangular tablets must consist of various fruit flavors. The candy must have a slightly sweet, fruity odor and a sweet, fruity flavor. Style A, square or rectangular fruit tablets must be individually wrapped and overwrapped in units of ten to form a 28.35 g (1.0 oz) bar. Style B, square fruit tablets must be individually wrapped and overwrapped in units of ten to form a 45.40 g (1.6 oz) bar. The product must not adhere to the wrappers.

6.4.3.2 Style C, Round or oval. The hard round or oval candy must contain sugar, corn syrup, hydrogenated coconut oil, salt, soy lecithin, natural and artificial flavors. The hard round or oval candies may contain cream (milk), reduced fat milk, whey, mono and diglycerides, U.S. FD&C certified colors, caramel color, lactic acid, and other ingredients as applicable to the flavor. The candy must have a hard texture and dissolve slowly in the mouth. The candy must have a sweet flavor, odor, and color characteristic of the flavor specified. Flavor 1, caramel must be a medium brown with a sweet caramel flavor and odor. Flavor 4, strawberry crème may have a red and white swirl pattern. The net weight of an individual package must be not less than 39.69 g (1.4 oz) and the hard round or oval candies must be individually wrapped. The product must not adhere to the wrappers.

6.4.3.3 Style D, Rings. The hard candy rings must contain sugar, corn syrup, natural and artificial flavors. The hard candy rings may contain high fructose corn syrup, citric acid, soy

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lecithin, salt. Flavor style d, sour must have a mild to moderately sweet, sour and fruit odor and flavor, dextrose, lactic acid, U.S. FD&C certified colors and other ingredients as applicable to the flavor. The hard candy rings must have a hole in the center and may have embossed letters. Flavor 1, assorted fruit and flavor 3, tropical fruit hard candies must consist of five various fruit flavors and colors. The hard candy rings must have a sweet flavor and odor characteristic of the flavor specified and the color of the hard candy rings must be characteristic of the flavor specified. The net weight of an individual package must be not less than 32 g (1.13 oz).

6.4.3.4 Style E, Rings, sugar free candy. The sugar free hard candy rings must consist of polyols, singly or in combination, such as sorbitol, isomalt, maltitol, and artificial sweeteners. The sugar free hard candy rings may contain natural and/or artificial flavors, magnesium stearate, soy lecithin, citric acid, U.S. FD&C certified colors and other ingredients as applicable to the flavor. The sugar free hard candy rings must have a flavor and odor characteristic of the flavor specified. Flavor 1, assorted fruit must consist of five various fruit flavors and colors. The color of the candy rings must be characteristic of the flavor specified. The sugar free hard candy rings must have a hole in the center and may have embossed letters. The net weight of an individual package must be not less than 32.03 g (1.13 oz).

6.4.4 Type IV - Pan coated candy. The pan coated candy must contain sugar, corn syrup, natural and/or artificial flavors, and U.S. FD&C certified colors. Minimal seepage of material through the coating of the pan coated candy is permissible. The coating must be free from pits (a pit must be defined as a hole or air bubble that is as great or greater than the head of a common pin), holes, cracks, and must be of such hardness that it cannot be easily crushed or cracked. The pan coated candy must have a candy shell with a high gloss and the colors must be vibrant (high chroma) and uniform (not mottled) in hue.

6.4.4.1 Style A, Disks. The pan coated candy disks must resemble a double-convex lens in shape.

6.4.4.1.1 Flavor 1, Milk chocolate, plain. The milk chocolate pan coated candy disks must consist of milk chocolate, have a sweet coating and milk chocolate center odor and flavor. The mixture must consist of at least five different colors. The count per pound must not be less than 480, not more than 540 with the bulk weight of the packaged product not to exceed 2 percent broken or crushed pieces and there must be 47.91 g (1.69 oz) of loose disks packed in a bag.

6.4.4.1.2 Flavor 2, Fruit flavored. The fruit flavored pan coated candy disks must consist of texturizing agent, ascorbic acid, and may contain hydrogenated palm kernel oil, fruit juice from concentrate, citric acid, and dextrin. The fruit flavored pan coated candy must have a sweet, fruit odor and flavor. The centers must be firm yet chewy, not hard or brittle. The package must contain pieces of candy of five various fruit flavors and colors. The count per pound must not be less than 420, not more than 460. There must be 51.02 - 61.51 g (1.80 - 2.17 oz) of loose disks packed in a bag.

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6.4.4.1.2.1 Flavor style a, Original. The original fruit flavored pan coated candy disks must consist of the following five flavors: lime, grape, lemon, orange, and strawberry.

6.4.4.1.2.2 Flavor style b, Berry. The berry fruit flavored pan coated candy disks must consist of the following five flavors: raspberry, wild cherry, berry punch, melon berry, and strawberry.

6.4.4.1.2.3 Flavor style c, Tropical. The tropical fruit flavored pan coated candy disks must consist of the following five flavors: mango tangelo, kiwi lime, strawberry star fruit, banana berry, and pineapple passionfruit.

6.4.4.1.2.4 Flavor style d, Sour. The sour fruit flavored pan coated candy disks must consist of the following five flavors: orange, strawberry, green apple, lemon and grape. Flavor style d, sour must have a mild to moderately sweet, sour and fruit odor and flavor. The disks must have an evenly distributed coating of fine sugar.

6.4.4.1.3 Flavor 3, Milk chocolate with peanut butter. The milk chocolate pan coated disks with peanut butter must consist of a peanut butter center coated with milk chocolate and covered with a thin candy shell. The candy must have a peanut butter and milk chocolate odor and flavor. The candies should be uniformly shaped and must consist of at least five different colors. The count per pound must not be less than 225, not more than 350. The net weight of an individual bag must be 46.20 g (1.63 oz).

6.4.4.1.4 Flavor 4, Peanut butter, plain. The peanut butter pan coated disks with peanut butter must consist of a peanut butter center with a thin candy shell. The candy must have a sweet coating with a peanut butter odor and flavor. The candies should be uniformly shaped and must consist of at least three different colors. The count per pound must not be less than 550, not more than 650. The net weight of an individual bag must be 39.68 g (1.40 oz).

6.4.4.1.5 Flavor 5, Cinnamon. The cinnamon pan coated disks must consist of a hard center covered with a hard candy shell. The candies must be uniformly shaped, red in color, with a hot cinnamon/cinnamic, sweet flavor. The count per pound must not be less than 480, not more than 750. The net weight of an individual bag must be 25.51 g (0.90 oz).

6.4.4.1.6 Flavor 6, Dark chocolate, plain. The dark chocolate pan coated disks must have a sweet coating and dark chocolate center odor and flavor. The candy must consist of at least five different colors. The count per pound must not be less than 480, not more than 540 with the bulk weight of the packaged product not to exceed 2 percent broken or crushed pieces. The net weight of an individual bag must have 47.91 g (1.69 oz) of loose disks packed in a bag.

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6.4.4.2 Style B, Oval or round.

6.4.4.2.1 Flavor 1, Milk chocolate with peanuts. The milk chocolate pan coated oval or round candies with peanuts must consist of a roasted peanut center coated with milk chocolate and covered with a thin candy shell. The candy must have a slightly sweet, chocolate and peanut odor and flavor. The candies must consist of at least five different. The count per pound must not be less than 155, not more than 225. The net weight of an individual bag must be 49.32 (1.74 oz).

6.4.4.2.2 Flavor 2, Dark chocolate covered coffee beans. The dark chocolate pan coated covered coffee beans oval or round candies must consist of a roasted coffee bean center coated with dark chocolate and covered with a pan coated thin candy shell. The candy shell must have a glossy sheen. The coffee bean center must have a rich, slightly bitter roasted coffee bean odor and flavor. The candy must be crunchy but not hard. The count per pound must not be less than 310, not more than 450, with the bulk weight of the packaged product not to exceed 2 percent broken or crushed pieces. The net weight of an individual package must be not less than 28.35 g (1.00 oz).

6.4.4.2.3 Flavor 3, Milk chocolate with almonds. The milk chocolate pan coated oval or round candies with almonds must consist of a roasted almond center coated with milk chocolate and covered with a thin candy shell. The candy must have a slightly sweet, milk chocolate, almond odor and flavor. The candies must consist of at least five different colors with the finished product testing *Salmonella* negative. The count per pound must not be less than 494, not more than 526. The net weight of an individual bag must be 37.13 g (1.31 oz).

6.4.4.2.4 Flavor 4, Dark chocolate with peanuts. The dark chocolate pan coated oval or round candies with peanuts must consist of a roasted peanut center coated with dark chocolate and covered with a thin candy shell. The candy must have a chocolate and peanut odor and flavor. The candies must consist of at least five different colors with the finished product testing *Salmonella* negative. The count per pound must not be less than 155, not more than 225. The net weight of an individual bag must be 49.32 g (1.74 oz).

6.4.4.3 Style C, Flat bottom tear drop. Flavor 1, the milk chocolate pan coated flat bottom tear drop candies must consist of a milk chocolate center covered with a thin candy shell. The candy must have a sweet coating with milk chocolate odor and flavor. The candies must consist of at least five different colors. The count per pound must not be less than 380, not more than 440. The net weight of an individual bag must be 42.45 g (1.50 oz).

6.4.5 Type V - Licorice style candy. The licorice style candies must contain corn syrup, wheat flour, artificial flavors and U.S, FD&C certified colors, and may contain sugar, palm oil, corn starch, natural flavors, salt, citric acid, anise flavor, glycerin, potassium sorbate, and soy lecithin. Chocolate flavored licorice style candy must also contain chocolate and cocoa. Black licorice

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style candy must also contain licorice extract, natural flavor, and caramel color, but must not contain artificial flavors. The licorice type candy must be glossy and have a soft chewy texture. The candy must have a sweet licorice flavor and odor characteristic of the flavor specified. The color must be specific to the flavor of candy. Cherry flavors must be a red color and have a sweet cherry odor and flavor. The count per pound of Style B - Bite size candy must be not less than 180 and not more than 220. The dimensions of Style B - Bite size candy must be 1.9 cm x 1.6 cm ± 0.32 cm (3/4 in x 5/8 in ± 1/8 in). The net weight of an individual package for Style B - Bite size candy must be not less than 63 g (2.22oz).

6.4.6 Type VI - Mint candy.

6.4.6.1 Style A, Round tablet. The round mint candy tablets must contain sugar, natural and/or artificial flavors. The round mint candy tablets may contain gum Arabic, gelatin, cornstarch, corn syrup, stearic acid, citric acid, aspartame, U.S. FD&C certified colors, and other ingredients as applicable to the flavor. The round mint candy tablets must be white and may have specks of color applicable to the flavor. The round mint candy tablets may have a white powdered coating. The round mint tablets must have a sweet, mint flavor and odor characteristic of the flavor specified. The mint tablets must be firm, not hard or brittle. The net weight of an individual package must be not less than 49.89 g (1.76 oz).

6.4.6.2 Style B, Rings. The mint candy rings must contain sugar, natural and/or artificial flavors. The mint candy rings may contain gum Arabic, gelatin, cornstarch, corn syrup, stearic acid, citric acid, aspartame, U.S. FD&C certified colors, and other ingredients as applicable to the flavor. The mint candy rings must have a hole in the center and may have embossed letter. The mint candy rings must be white and may have specks of color applicable to the flavor. The mint candy rings must have a sweet, mint flavor and odor characteristic of the flavor specified. The mint candy rings must be firm, not hard or brittle. The net weight of an individual package must be not less than 32.03 g (1.13 oz).

6.4.6.3 Style C, Rings, sugar free. The sugar free mint candy rings must consist of polyols singly or in combination, such as sorbitol, isomalt, maltitol, artificial sweeteners, and other ingredients as applicable to the flavor. The sugar free mint candy rings may contain U.S. FD&C certified colors and natural and/or artificial flavors. The sugar free mint candy rings must have a hole in the center and may have embossed letters. The sugar free mint candy rings must have a flavor and odor characteristic of the flavor specified. The sugar free mint candy rings must be white and may have specks of color applicable to the flavor. The net weight of an individual package must be not less than 32.03 g (1.13 oz).

6.4.6.4 Style D, Square mini tablets, sugar free. The sugar free square mini mint candy tablets must consist of polyols singly or in combination. Such as sorbitol, isomalt, maltitol, and artificial sweetener. The sugar free square mini mint candy tablets may contain maltodextrin, acacia, magnesium stearate, cornstarch, soy lecithin, U.S. FD&C certified colors, and natural

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and/or artificial flavors. The sugar free square mini mint candy tablets must have a flavor and odor characteristic of the flavor specified. The color of the sugar free square mini mint candy tablets must be characteristic of the flavor specified. The net weight of an individual package must be not less than 10.48 g (0.37 oz).

6.4.7 Type VII - Caffeinated mints.

6.4.7.1 Style A, Round tablets. The round caffeinated mint tablet must contain sugar, corn syrup, natural flavors, and caffeine. The round caffeinated mint tablets may contain other ingredients such as gelatin, glycerin, artificial flavors, gum Arabic, stearic acid, magnesium, stearate, calcium stearate, and tragacanth gum. The caffeinated mints must be intact round flat tablets with a diameter no greater than 13 mm (0.5 in). The tablets must be white and may have a white powdered coating on the outside. The mints must have a sweet, mint odor and flavor and may have a slightly bitter aftertaste. The mints must have a hard initial bite and break, but not shatter when chewing. Ten to twelve tablets must have 50 - 90 milligrams (mg) of caffeine and a net weight of not less than 10 g (0.35 oz).

6.4.7.2 Style B, Round sugar free tablets. The round sugar free caffeinated mint tablets must contain sorbitol, caffeine, peppermint extract, natural and artificial flavors, magnesium stearate, salt, sucralose, acesulfame-K, and aspartame. The tablets may contain other ingredients such as vitamins and other approved ingredients. The sugar free caffeinated mints must be intact round tablets with an individual weight of 1.8 g (0.06 oz) and a diameter no greater than 16 mm (0.6 in). The tablets must be white and may have blue specks of color or imprinted designs. The mints must have a strong peppermint odor and flavor, a sweet flavor and may have a bitter aftertaste. The mints must have a hard texture and must dissolve slowly in the mouth. The mints must contain 80 - 120 mg of caffeine in each tablet. The net weight of five tablets must be not less than 9 g (0.32 oz); the net weight of six tablets must be not less than 11 g (0.39 oz).

6.4.8 Type VIII - Caffeinated jelly beans, Style A, Bean-shaped. The caffeinated jelly bean must contain evaporated cane juice, natural and artificial flavor, fruit juices and purees, carnauba wax and caffeine. The color of the caffeinated jelly bean must be specific to the flavor of the jelly bean and must be slightly glossy. The caffeinated jelly bean must be bean-shaped and approximately 2 cm x 1 cm x 1 cm (4/5 in x 2/5 in x 2/5 in). The product must not adhere to the package with 13 - 15 jelly beans per package. The odor and flavor must be specific to the flavor specified. The texture must have a soft and chewy interior with a firm candy shell exterior. The caffeine content must be 50 - 100 mg per 28 g. The net weight of an individual package must be not less than 28.35 g (1.00 oz).

6.4.9 Type IX - Caffeinated chewables/gels, Style A, Dome-shaped. The caffeinated chewable/gel must contain cane sugar, tapioca syrup, natural and artificial flavor, fruit juices, caffeine and carnauba wax. The chewable/gel must be dome shaped and be 2 cm (4/5 in) in diameter and 1.2 cm (1/2 in) in height. The appearance must be semi-translucent, slightly matte

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surface and may have a slight surface sheen. The product must not adhere to the package with 10 - 12 chewables/gels per package. The flavor, color and odor, must be specific to the specified flavor. Flavor 2 must have golden yellow color, and a mild lime and sweet honey odor and must have a strong sugary sweet with moderate lime, honey and mild tea flavor. The texture must be a soft pectin-based bite with no sticking to teeth. The caffeine content must be 50 - 100 mg per 50 g. The net weight of 10 - 12 chewable/gel must be not less than 50.00 grams (1.8 oz) per package.

6.5 Aflatoxin testing. All USDA certified candy must be tested for aflatoxin by USDA, AMS, Science and Technology Program (S&T), Laboratory Approval and Testing Division. The aflatoxin content of the product will not be greater than 15 parts per billion (ppb) as evidenced by a USDA, AMS, S&T certificate. When candy is certified by the manufacturer, a Certificate of Analysis as verification of aflatoxin testing will be provided by the manufacturer. The aflatoxin content of the finished product must not be greater than 15 ppb.

6.6 Foreign material. Ingredients used to produce the candy that have Defect Action Levels must not exceed those tolerances specified in 21 CFR §117.110. All ingredients must be clean, sound, wholesome, and free from foreign material. The finished candy must be clean, sound, wholesome, and free from foreign material such as, but not limited to extraneous plant material, hair, plastic pieces, metal contaminants, and evidence of rodent or insect infestation.

7. ANALYTICAL REQUIREMENTS.

7.1 Analytical requirements. Unless otherwise specified in the solicitation, contract or purchase order, the following analytical requirements for the candies must conform to those in Table I:

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TABLE I. Analytical requirements

Type	Description	Moisture (percent by weight)	pH	Caffeine content
Type I, Style A	Chocolate flavored toffee, roll	5.0 - 8.0	---	---
Type I, Style B	Chocolate flavored toffee, cube	5.0 - 9.5	---	---
Type II	Toffee with walnuts	5.0 - 9.5	---	---
Type IV, Style A, Flavor 2	Pan coated candy disks, fruit flavored	---	2.0 - 4.0	---
Type IV, Style B, Flavor 2	Pan coated candy oval/round, dark chocolate covered coffee beans	Not more than (NMT) 2.0	---	---
Type V, Styles A & B	Licorice style candy, twists and bite size	NMT 15.0	---	---
Type V, Style C	Licorice style candy, rope	NMT 16.5	---	---
Type VII, Style A, Flavor 1	Caffeinated mints, round tablets, peppermint[5]	---	---	50 - 90 mg per 10 g per package
Type VII, Style B, Flavor 1	Caffeinated mints, round tablets, sugar free, peppermint[6]	---	---	80 - 120 mg per tablet
Type VIII, Style A	Caffeinated jelly beans, bean-shaped[7]	NMT 6.0	---	50 - 100 mg per 28 g

[5] The caffeine content for Type VII, Style A mints must be not less than 50 mg or not greater than 90 mg per 10 g package.
[6] The caffeine content for Type VII, Style B mints must be not less than 80 mg or not greater than 120 mg per tablet.
[7] The caffeine content for Type VIII, Style A jelly beans 50 - 100 mg per 28 g

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Type	Description	Moisture (percent by weight)	pH	Caffeine content
Type IX, Style A	Caffeinated chewables/gels, dome-shaped[8]	NMT 16.0	---	50 - 100 mg per 50 g (chews)

TABLE II. Aflatoxin requirements

Type	Description	Aflatoxin
Type IV, Style A, Flavor 3 and 4	Pan coated candy, disks, milk chocolate with peanut butter and plain peanut butter	Not more than 15 ppb
Type IV, Style B, Flavor 1, 3 and 4	Pan coated candy, oval/round, milk chocolate with peanuts, milk chocolate with almonds, and dark chocolate with peanuts	Not more than 15 ppb

7.2 Microbiological requirements. All chocolate flavors and Type IV candy must test negative for *Salmonella*.

7.3 Analytical verification. Purchaser must specify manufacturer's/distributor's certification (Sec. 10.3) or USDA certification (Sec. 10.4). USDA certified candies requiring aflatoxin testing must be tested by USDA, AMS, S&T. When the candies are certified by the manufacturer, a Certificate of Analysis as verification of aflatoxin testing must be provided by the manufacturer.

7.4 USDA verification procedures. When USDA certification (Sec. 10.4) is specified in the solicitation, contract, or purchase order, analytical testing must be performed as follows.

7.4.1 Product verification sampling. When USDA verification of analytical requirements is specified in the solicitation, contract, or purchase order, analytical testing must be performed on subsamples of packages randomly selected from the lot. The number of subsamples must be based on USDA inspection service sampling procedures and plans (7 CFR §52.38). The contents of each will be used to create a composite sample that will be used in the analytical testing

7.4.1.1 Aflatoxin. Three sets of five representative independently drawn pouches/containers must be submitted to the laboratory for testing. Each of the three sets of five pouches/containers must be composited and respectively designated as test sample 1, test sample 2, and test

[8] The caffeine content for Type IX, Style A chewable/gels 50 - 100 mg per 50 grams (chews).

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sample 3. Lots will be reported as negative for aflatoxin if test sample 1 has an aflatoxin level at or below 5 ppb. If the sample 1 is at or above 25 ppb the lot fails. If the aflatoxin level for the test sample 1 is above 5 ppb and less than 25 ppb, test sample 2 must be analyzed. Test results for test samples 1 and 2 will be averaged. If the average aflatoxin level for test samples 1 and 2 is 10 ppb or less the lot will be reported as negative for aflatoxin but fails if the aflatoxin level is at or above 20 ppb. If the average value for test samples 1 and 2 is above 10 ppb but less than 20 ppb, test sample 3 must be analyzed. The results of test samples 1, 2 and 3 will be averaged. If the average aflatoxin level for test samples 1, 2 and 3 is 15 ppb or less the lot will be reported as negative for aflatoxin. If the average aflatoxin level for test samples 1, 2 and 3 is above 15 ppb the lot fails.

7.4.1.2 ***Salmonella*.** Five filled and sealed pouches/containers must be selected at random and individually tested.

7.4.2 Analytical testing and reporting. When specified in the solicitation, contract, or purchase order, the analyses must be made in accordance with the following methods from the Association of Official Analytical Collaboration (AOAC) International Official Methods of Analysis (OMA) or as specified in Table III. Any results not conforming to the analytical requirements may be cause for rejection of the lot.

TABLE III. Analytical and microbiological testing and reporting

Test	Method	Reported as
Aflatoxin	AOAC 970.45 and 991.31	Nearest 1 ppb
Moisture, Types I, II, VIII, and IX	AOAC 925.45A (Recommend 65 °C (149 °F))	Nearest 0.1 percent
Moisture, Type IV, Style B, Flavor 2	AOAC 925.49, 44.3.01 (Recommend 70 °C (158 °F))	Nearest 0.1 percent
Moisture Type V	AOAC 934.06 (first paragraph (use 2 -3 g sample with sand))	Nearest 0.1 percent
Salmonella	AOAC 967.26(e), 996.08, 2001.09, 2003.09, or 2004.03	Negative or positive
pH	AOAC 981.12[9]	Nearest 0.1 value

[9] In determining the pH, 10 grams of sample and 10 ml of water must be used.

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Test	Method	Reported as
Caffeine	AOAC 980.14	Nearest mg

8. MANUFACTURER'S/DISTRIBUTOR'S PRODUCT ASSURANCE. The manufacturer/ distributor must certify that the candy provided meets the salient characteristics of this CID, conform to their own specifications, standards, and quality assurance practices, and be the same candy offered for sale in the commercial market. The purchaser reserves the right to require proof of conformance.

9. REGULATORY REQUIREMENTS. The delivered candy must comply with all applicable Federal, State, and local mandatory requirements and regulations relating to the preparation, packaging, labeling, storage, distribution, and sale of the candy in the commercial marketplace. Delivered candy must comply with all applicable provisions of the FD&C Act, the Fair Packaging and Labeling Act (FPLA), and regulations promulgated thereunder. The allergen statement must be provided in a format which complies with the Food Allergen Labeling and Consumer Protection Act (FALCPA), and the Food Allergy Safety, Treatment, Education, and Research (FASTER) Act[10] for any product which contains wheat, fish, milk, soy, tree nuts, eggs, peanuts, sesame, and Crustacean shellfish as well as any food ingredient that contains protein derived from one of those foods, with the exception of highly refined oils, as "major food allergens".

10. QUALITY ASSURANCE PROVISIONS. *Purchaser must specify 10.3 or 10.4. Purchaser may specify one of the following combinations: 10.1.1 with 10.2.1 or 10.1.2 with 10.2.2.*

10.1 Food defense. When required in the solicitation, contract, or purchase order, a Food Defense Systems Survey (FDSS) or audit must be conducted by USDA, AMS, Specialty Crops Program (SCP), Specialty Crops Inspection (SCI) Division. Food defense requirements include a documented and operational food defense plan that provides for the security of a plant's production processes and includes the storage and transportation of pre-production raw materials and other ingredients and post-production finished product. The plan must address the following areas: (1) food security plan management; (2) outside and inside security of the production and storage facilities; (3) processing, including all raw material sources; (4) shipping and receiving; (5) storage; (6) water and ice supply; (7) mail handling; (8) personnel security; and (9) transportation, shipping, and receiving.

10.1.1 FDSS. When required in the solicitation, contract, or purchase order, a FDSS must be conducted by USDA, AMS, SCP, SCI Division auditors. The FDSS verifies that operators of food establishments have implemented measures to minimize the risk of tampering or other

[10] Information on the FALCPA and the FASTER Acts are available at: https://www.fda.gov/food/food-labeling-nutrition/food-allergies.

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criminal actions against the food under their control. An AMS FDSS verifies the participating company's adherence to *Mitigation Strategies to Protect Food Against Intentional Adulteration* (21 CFR Part 121).

10.1.2 Food defense section of the Plant Systems Audit (PSA). When required in the solicitation, contract, or purchase order, a food defense audit will be conducted as part of the PSA. The audit will be conducted by USDA, AMS, SCP, SCI Division auditors. This verifies that operators of food establishments have implemented measures to minimize the risk of tampering or other criminal actions against the food under their control. The food defense section of the PSA verifies the participating company's adherence to *Mitigation Strategies to Protect Food Against Intentional Adulteration* (21 CFR Part 121).

10.2 Manufacturer's quality assurance. When required in the solicitation, contract, or purchase order, the product manufacturer will be required to provide evidence, by certificate that the manufacturing plant has undertaken one of the following quality assurance measures within 12 months prior to providing a bid or no later than 10 business days from the date of the awarding of the contract. Failure to provide this documentation within the proper time frame may result in the contract being terminated for cause.

10.2.1 Plant survey. A plant survey conducted by USDA, AMS, SCP, SCI Division is required within 12 months prior to the date of the awarding of the contract. The plant survey audit verifies that, at the time of the survey, the manufacturer produces products in a clean, sanitary environment in accordance with *Current Good Manufacturing Practice, Hazard Analysis, and Risk-Based Preventive Controls for Human Food* (21 CFR Part 117).

10.2.2 PSA. A PSA conducted by USDA, AMS, SCP, SCI Division is required within 12 months prior to the date of the awarding of the contract. The PSA verifies the manufacturer's capability to produce products in a clean, sanitary environment in accordance with *Current Good Manufacturing Practice, Hazard Analysis, and Risk-Based Preventive Controls for Human Food* (21 CFR Part 117) and verifies that the manufacturer has in place an internal quality assurance program that meets or exceeds USDA requirements.

10.3 Manufacturer's/distributor's certification. When required in the solicitation, contract, or purchase order, the manufacturer/distributor must certify that the candy delivered meets or exceeds the requirements of this CID. The manufacturer/distributor must certify via a Certificate of Conformance or other adequate documentation (*as specified by the purchaser*) that the candy meets analytical requirements specified in Sec. 7 of this CID.

10.4 USDA certification. When required in the solicitation, contract, or purchase order, the product quality and acceptability or both be determined, the USDA, AMS, SCP, SCI Division must be the certifying program. AMS inspectors must certify the quality and acceptability of the candy in accordance with approved SCI Division procedures, which include selecting random samples of the candy, evaluating the samples for conformance with the salient characteristics and

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analytical requirements of this CID and other contractual requirements, and documenting the findings on official SCI Division score sheets and/or certificates. In addition, when required in the solicitation, contract, or purchase order, SCI Division graders will examine the candy for conformance to the *Standards for Condition of Food Containers* (7 CFR Part 42) in effect on the date of the solicitation.

11. PACKAGING. Preservation, packaging, packing, labeling, and case marking must be commercial unless otherwise specified in the solicitation, contract, or purchase order.

12. USDA INSPECTION NOTES. When Sec. 10.4 is specified in the solicitation, contract, or purchase order, USDA certification must include evaluation of the quality and condition of samples of candy and compliance with requirements in the following areas:

- Processing guidelines (Sec. 5).
- Salient characteristics (Sec. 6).
- Analytical requirements *when specified in the solicitation, contract, or purchase order* (Sec. 7). When USDA analytical testing is specified, SCI Division inspection personnel must select samples and submit them to the USDA, AMS, S&T laboratory for analysis.
- Packaging requirements (Sec. 11 or *as specified in the solicitation, contract, or purchase order*).

13. REFERENCE NOTES.

13.1 USDA services.

13.1.1 USDA certification. For USDA certification information contact: **USDA, AMS, SCP, SCI Division, National Program Mission Support, via E-mail: SCIinspectionoperations@usda.gov**.

13.1.2 USDA FDSS, plant survey, and PSA. For a USDA FDSS, plant survey, and PSA contact the **USDA, AMS, SCP, SCI Division, Auditing Service Branch, at Room 1566 South Building, STOP 0247, 1400 Independence Avenue, SW, Washington, DC 20250-0247, telephone (202) 720-5021, fax (866) 230-9168, or via E-mail: SCAudits@usda.gov**.

13.1.3 Analytical testing and technical information. For USDA technical information on analytical testing, contact the **USDA, AMS, S&T, Laboratory Approval and Testing Division, STOP 0272, 1400 Independence Avenue, SW, Washington, DC 20250-0272, telephone (202) 690-4089 or via E-mail: LATD@usda.gov**. Samples for specified USDA analytical testing should be sent to the USDA, AMS, S&T laboratory for analysis at: **USDA, AMS, S&T, National Science Laboratory, at 801 Summit Crossing Place, Suite B, Gastonia, NC 28054**.

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13.2 Sources of documents.

13.2.1 Sources of information for nongovernmental documents are as follows:

Copies of the AOAC International OMA may be obtained from: **AOAC International, 2275 Research Boulevard, Suite 300, Rockville, MD 20850-3250, telephone (301) 924-7077.** Internet address: **https://www.aoac.org**.

Copies of the Food Chemicals Codex and U.S. Pharmacopeia may be purchased from: **United States Pharmacopeia Convention, at 12601 Twinbrook Parkway, Rockville, MD 20852, telephone (800) 227-8772 or (301) 881-0666, fax (301) 816-8148 or on the Internet at: https://www.usp.org**.

13.2.2 Sources of information for governmental documents are as follows:

Applicable provisions of the *Standards for Condition of Food Containers* are contained in 7 CFR Part 42, the *National Organic Program* are contained in 7 CFR Part 205, the *Fair Packaging and Labeling Act* are contained in 16 CFR Parts 500 to 503, and the *Federal Food, Drug, and Cosmetic Act* are contained in 21 CFR Parts 1 to 199. These documents may be purchased from: **Superintendent of Documents, New Orders, P.O. Box 979050, St. Louis, MO 63197-9000. Credit card (Visa, MasterCard, Discover/NOVUS, and American Express) purchases may be made by calling the Superintendent of Documents at (866) 512-1800, (202) 512-1800. These documents may also be obtained free of charge on the Internet at: https://www.ecfr.gov/**.

Copies of this CID and the *Standards for Condition of Food Containers* (7 CFR Part 42) are available from: **USDA, AMS, SCP, SCI Division at Room 1536 South Building, STOP 0240, 1400 Independence Avenue, SW, Washington, DC 20250-0240, via E-mail: CIDS@usda.gov or on the Internet at: https://www.ams.usda.gov/grades-standards/cids and https://www.ecfr.gov/current/title-7/subtitle-B/chapter-I/subchapter-A/part-42**.

Copies of this CID are also available online at: **ASSIST Online (https://assist.dla.mil) or ASSIST Quick Search (https://quicksearch.dla.mil)**.

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MILITARY INTERESTS:

Military Coordination Activity

Army - GL

Custodians

Army - GL
Navy - SA
Air Force - 35
DLA - SS

Review Activities

Army - MD, QM
Navy - MC

CIVIL AGENCY COORDINATING ACTIVITY:

DOJ - BOP
HHS - FDA
USDA - SCP
VA - OSS

PREPARING ACTIVITY:

DLA - SS
(Project No. 8925-2024-001)

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